

25STCV35602 25STCV35602

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Case Number: 25STCV35602 Hearing Date: August 28, 2026 Dept: 406

MICHAEL F. MORAN, et

al.,

Plaintiffs,

v.

ELLEVEN HOMEOWNERS ASSOCIATION, et al.,

Defendants.

Case No.: 25STCV35602

Hearing Date: August 28, 2026

[TENTATIVE]

order RE:

defendants' demurrer and motion to
strike (CRS# 0626)

BACKGROUND

On December 5, 2025, Plaintiffs

Michael Moran and Karen Moran filed this action against Defendants Elleven Homeowners Association (Elleven), Action Property Management, Inc. (APM), and various individuals. Plaintiffs filed the operative First Amended Complaint on June 10, 2026, asserting (1) breach of contract, (2) breach of the implied

covenant of good faith and fair dealing, (3) breach of fiduciary duty, (4) negligence, (5) willful misconduct, (6) private nuisance, (7) trespass, and (8) concealment. Plaintiffs allege that Defendants failed to properly maintain and repair the property's plumbing system, leading to Plaintiffs' unit being flooded with sewage backup.

On July 14, 2026, Defendants filed the instant demurrer and motion to strike. Plaintiffs filed an opposition on August 17, 2026. Defendants filed a reply on August 21, 2026.

LEGAL STANDARD

A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (*Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or by proper judicial notice. (Code Civ. Proc., § 430.30, subd. (a).) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (*SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905.) Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (*Ibid.*) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (*Hahn, supra*, 147 Cal.App.4th at 747.)

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part of that pleading. (Code Civ. Proc., § 435, subd. (b).) The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike (1) any irrelevant, false, or improper matter inserted in any pleading and (2) all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (*Id.*, § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (*Id.*, § 437.)

MEET AND CONFER

Before filing a demurrer or a motion to strike, the demurring or moving party is required to meet and confer with the

party who filed the pleading demurred to or the pleading that is subject to the motion to strike for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (Code Civ. Proc., §§ 430.41, 435.5.) The Court finds that Defendants have satisfied the meet and confer requirement. (See Bubion Decl.)

DISCUSSION

I.

Willful Misconduct

“Willful misconduct is not a separate tort from negligence, but rather an aggravated form of negligence, differing in quality rather than degree from ordinary lack of care. In order to establish willful misconduct, a plaintiff must prove not only the elements of a negligence cause of action, that is, duty, breach of duty, causation, and damage, but also (1) actual or constructive knowledge of the peril to be apprehended, (2) actual or constructive knowledge that injury is a probable, as opposed to a possible, result of the danger, and (3) conscious failure to act to avoid the peril.” (Doe v. United States Youth Soccer Assn., Inc. (2017) 8 Cal.App.5th 1118, 1140, internal citations and quotations omitted.)

Here, Plaintiffs allege that

Defendants were on notice of common area plumbing defects and did not timely act to fix the plumbing, thus resulting in the flooding of Plaintiff’s unit.

This amounts to negligence at most. There are no facts indicating that Defendants actually or constructively knew that damage to Plaintiffs’ unit was probable. The allegations also show that Defendants took action on the plumbing issues. For example, Defendants discussed and approved the hydrojetting that was allegedly required to alleviate the issue, and hired vendors to conduct testing, inspection, and repair. (See FAC ¶¶ 44-52.) This is the opposite of a “conscious failure to act” which is required for willful misconduct. The mere fact that Defendants did not initiate repairs in time to prevent damage to Plaintiffs’ unit does not elevate the situation to willful misconduct. Therefore, the willful misconduct claim fails as a matter of law.

II.

Trespass

“The elements of trespass are: (1) the plaintiff’s ownership or control of the property; (2) the defendant’s intentional, reckless, or negligent entry onto the property; (3) lack of permission for the entry or acts in excess of permission; (4) harm; and (5) the defendant’s conduct was a substantial factor in causing the harm.” (Ralphs Grocery Co. v. Victory Consultants, Inc. (2017) 17 Cal.App.5th 245, 262.) “The doing of an act which will to a substantial certainty result in the entry of foreign matter upon another’s land suffices for an intentional trespass to land upon which liability may be based.” (Roberts v. Permanente Corp. (1961) 188 Cal.App.2d 526, 530-31.)

Here, there are insufficient facts showing that Defendants acted with “substantial certainty” that there would be an intrusion of foreign matter into Plaintiffs’ unit. (See Roberts, *supra*, 188 Cal.App.2d at pp. 530-31.) The complaint only establishes that Defendants were aware of general plumbing issues and failed to take timely remedial action. Plaintiffs cite no authority suggesting that this can be considered an act of trespass. The complaint does not otherwise allege that Defendants themselves entered Plaintiffs’ unit. Thus, the trespass claim fails as a matter of law.

III.

Concealment

“The elements of a claim for fraudulent concealment require the plaintiff to show that: ‘(1) the defendant ... concealed or suppressed a material fact, (2) the defendant [was] under a duty to disclose the fact to the plaintiff, (3) the defendant ... intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff [was] unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.’” (Prakashpalan v. Engstrom, Lipscomb & Lack (2014) 223 Cal.App.4th 1105, 1130.)

“California

courts apply the same specificity standard to evaluate the factual underpinnings of a fraudulent concealment claim at the pleading stage, even though the focus of inquiry shifts to the unique elements of the claim.” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 43.) “[T]he complaint must . . . include specific allegations establishing all the required elements, including (1) the content of the

omitted facts, (2) the defendant's awareness of the materiality of those facts, (3) the inaccessibility of the facts to the plaintiff, (4) the general point at which the omitted facts should or could have been revealed, and (5) justifiable and actual reliance.” (Id. at pp. 43-44.)

Here, the complaint does not contain the requisite specificity to support the fraud claim. Plaintiffs allege that Defendants collectively failed to disclose every plumbing-related fact, without specifying who concealed what fact, or establishing their duty to disclose that particular fact. Plaintiffs cite *Cohen v. Kite Hill Community Assn.* (1983) 142 Cal.App.3d 642, 651 for the proposition that homeowner’s “associations owe a fiduciary duty to their members.” But *Cohen* did not involve a fraud claim, and the court did not contend with the duty to disclose or the specificity requirement. The mere fact that HOAs owe their members fiduciary duties is insufficient to carry the fraud claim. Moreover, the only HOA defendant in this case is Elleven. Plaintiffs have not established that APM and the individual defendants had a fiduciary relationship with Plaintiffs or otherwise had a duty to disclose the facts at issue.

Thus, the fraud claim fails as a matter of law.

IV. Punitive Damages

“In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.” (Civ. Code, § 3294, subd. (a).) A complaint “must include specific factual allegations showing that defendant’s conduct was oppressive, fraudulent, or malicious to support a claim for punitive damages.” (Today’s IV v. *Los Angeles County Metropolitan Transportation Authority* (2022) 83 Cal.App.5th 1137, 1193.) “Punitive damages may not be pleaded generally.” (Ibid.)

Here, the complaint lacks specific aggravating facts demonstrating malice, oppression, or fraud. Therefore, the punitive damages are stricken.

CONCLUSION

Defendants' demurrer is SUSTAINED

without leave to amend as to the fifth, seventh, and eighth causes of action.

The motion to strike punitive damages is GRANTED without leave to amend.